



POLICE DEPARTMENT

June 6, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208801 (Incident Date: December 15, 2022) regarding Police Officer Jeffrey Almanzar, Tax No. 973212 (DADS No. 2024-30438)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208801, pertaining to Police Officer Jeffrey Almanzar. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said member of the service would be detrimental to the Police Department's disciplinary process.

The Police Commissioner agrees with CCRB's substantiated findings for Specifications No. One (1) and Two (2). However, due to Police Officer Almanzar's lack of prior disciplinary history or substantiated CCRB complaints, the Police Commissioner believes applying the mitigated penalty would be more appropriate. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "B" Command Discipline against Police Officer Almanzar for the allegations regarding physical force and discourtesy.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 10, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Jeffrey Almanzar
Disciplinary Case No.: 2024-30438

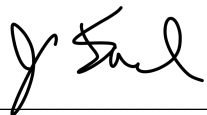
Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 6, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against said member of the service would be detrimental to the Police Department’s Disciplinary process” and you intend to retain jurisdiction over this matter and issue a Schedule B command Discipline against Police Officer Almanzar.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Almanzar and permit CCRB to prosecute this case. By imposing a Command Discipline Schedule B with no penalty, Police Officer Almanzar is not truly being held accountable for this substantiated misconduct. If CCRB’s Charges and Specifications were served on Police Officer Almanzar and he was willing to accept substantiation of the allegations contained in those Charges and Specifications, CCRB would be willing to offer a Command Discipline Schedule B with a total penalty of the forfeiture of ten (10) vacation days, taking into consideration the facts and evidence in this matter and balancing that with Police Officer Almanzar’s lack of a disciplinary history with the Department.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction in this matter and imposing a Command Discipline Schedule B with no penalty imposed for this substantiated misconduct. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Almanzar.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

June 12, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208801 (Incident Date: December 15, 2022) regarding Police Officer Jeffrey Almanzar, Tax No. 973212 (DADS No. 2024-30438)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 10, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Jeffrey Almanzar. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Almanzar for the reasons expressed in my June 6, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "B" Command Discipline with the forfeiture of five (5) vacation days for the allegations of physical force and discourtesy.

Sincerely,

NSP
Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

COURTESY • PROFESSIONALISM • RESPECT

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